

**Privacy Policy regarding the operation of the internal reporting channel in accordance with
the
Whistleblower Protection Act (HinSchG) of Naue GmbH & Co. KG**

Introduction

We, Naue GmbH & Co. KG, as the operator of the whistleblowing system, are the data controller responsible for processing the personal data of users of the whistleblowing system. The contact persons for questions regarding the processing of personal data are listed directly in this privacy policy.

We take the protection of your privacy and your personal data very seriously. We collect, store and use your personal data only in accordance with the terms of this privacy policy and the applicable data protection regulations, in particular the European General Data Protection Regulation (GDPR) and national data protection regulations.

The whistleblowing system serves to implement the Whistleblower Protection Act (HinSchG), which regulates the protection of persons who, in connection with or in the course of their professional activities, have obtained information about certain breaches and report or disclose this to the reporting bodies provided for by law (whistleblowers), as well as the protection of persons who are the subject of a report or disclosure or are otherwise affected by it. Our whistleblowing system is a service we offer, amongst others, to our employees, to report breaches of legal provisions to the company.

This privacy policy informs you of the extent to which and the purposes for which personal data is processed in connection with the use of the whistleblowing system.

Personal data

Personal data is information relating to an identified or identifiable natural person. This includes all information regarding your identity, such as your name, email address or postal address. Information that cannot be linked to your identity (such as statistical data regarding the number of users of the whistleblowing system) is not, however, considered personal data.

When you use our whistleblowing system, personal data is collected from you. We generally process this data solely for the purposes of using the whistleblowing system, in particular to process a report that has been submitted. The whistleblower's email address is processed for technical processing purposes. In addition, you may voluntarily provide further personal data. We will then provide information on the specific details in the relevant section of this privacy policy.

No automated decision-making based on your personal data takes place in connection with the use of the whistleblowing system.

Processing of personal data

We store your details on secure servers within the European Union. These are protected by technical and organisational measures against loss, destruction, unauthorised access, alteration or disclosure of your data by unauthorised persons. Access to your data is restricted to a small number of authorised persons. These individuals are responsible for the technical, commercial or editorial management of the servers. However, despite regular checks, it is not possible to provide complete protection against all risks.

Disclosure of personal data to third parties

We generally use your personal information solely for the purpose of clarifying the facts, in particular for processing your report.

Furthermore, we do not pass on the data to third parties without your express consent. Your personal data will only be disclosed if you have consented to such disclosure yourself or if we are entitled or obliged to do so on the basis of statutory provisions and/or official or court orders. This may, in particular, involve the provision of information for the purposes of criminal prosecution, to avert danger or to enforce intellectual property rights.

Where we transfer your personal data to countries outside the European Union, we comply with the specific requirements of Articles 44 et seq. of the GDPR. We will therefore only transfer your data to countries outside the European Union subject to the level of protection guaranteed by the GDPR. This level of protection is ensured in particular by an adequacy decision of the European Commission or by appropriate safeguards in accordance with Article 46 of the GDPR.

Legal basis for data processing

Where we obtain your consent for the processing of your personal data, Article 6(1)(a) of the GDPR forms the legal basis for data processing.

Where we process your personal data because this is necessary for the performance of a contract or within the framework of a pre-contractual relationship with you, Article 6(1)(b) of the GDPR constitutes the legal basis for the data processing.

Where we process your personal data to comply with a legal obligation, Article 6(1)(c) of the GDPR forms the legal basis for the data processing.

Article 6(1)(f) of the GDPR may also serve as the legal basis for data processing if the processing of your personal data is necessary to safeguard a legitimate interest of our company or a third party, and your interests, fundamental rights and freedoms do not require the protection of personal data.

In this privacy policy, we always specify the legal basis on which we process your personal data.

Data erasure and retention period

We generally delete or block your personal data whenever the purpose for which it was stored no longer applies. However, data may be retained beyond this period if required by legal provisions to which we are subject, for example in relation to statutory retention and documentation obligations. In such cases, we will delete or block your personal data once the relevant provisions have expired.

Use of our whistleblowing system

Submitting a report

The whistleblowing system allows you to report breaches within the meaning of the HinSchG of which you have become aware in the course of your professional activities or in the run-up to them.

As part of the reporting procedure, the internal reporting office will confirm receipt of the report to the whistleblower, check whether the reported breach falls within the scope of the HinSchG, maintain contact with the whistleblower, verify the validity of the report received by , request further information from the whistleblower if necessary, and take appropriate follow-up measures. Personal data may be processed in this context. We also collect the data you provide in your report. This includes, in particular, details of the person accused and their conduct, as well as your name and, where applicable, contact details, your position within the company and the circumstances in which the misconduct was observed.

You may decide for yourself whether you wish to submit a report via our whistleblowing system and what data you provide in doing so. Our legal basis for data processing in this regard

is your consent pursuant to Article 6(1)(a) of the GDPR, which you may withdraw at any time with future effect.

The HinSchG generally stipulates an obligation to establish reporting channels for companies with 50 or more employees. Under the HinSchG, we are therefore obliged to set up a reporting channel and to process and document the reports received by us. The legal basis for the associated processing of personal data is our legal obligation pursuant to Article 6(1)(c) of the GDPR. The data processing also serves our legitimate interests in detecting and remedying legal violations and malpractices, preventing criminal offences and safeguarding the health of employees within the company. In this respect, our legal basis for data processing is additionally Article 6(1)(f) of the GDPR. Insofar as the processing of employees' personal data serves to investigate criminal offences and documented evidence gives rise to the suspicion that the data subject has committed a criminal offence in the course of their employment, the processing is necessary for detection and the employee's legitimate interest in excluding the processing does not outweigh this, Section 26(1) sentence 2 of the Federal Data Protection Act (BDSG) also forms our legal basis for data processing.

Section 10 of the HinSchG permits us to process personal data insofar as this is necessary to fulfil our duties as specified in the HinSchG. It also permits us to process special categories of personal data if this is necessary to fulfil our duties. We are obliged to store and document the report in accordance with Section 11 of the HinSchG. All incoming reports are documented in a permanently accessible manner, in compliance with the requirement of confidentiality.

The documentation is deleted three years after the conclusion of the proceedings. The documentation may be retained for longer in order to meet the requirements of the HinSchG or other legal provisions, provided this is necessary and proportionate.

Data is not, as a rule, disclosed to third parties. However, disclosure may take place to the extent that this is necessary for the processing of a report received, in particular for the investigation of a breach and for criminal prosecution.

If a report contains personal data relating to the accused person, we will inform them of the processing of their data in accordance with Article 14 of the GDPR. This includes, in particular, information regarding the nature of the data, the purpose of the data processing, the recipients of the data and the source of the data. However, informing the data subject may be excluded on the basis of legal requirements. This is the case, in particular, pursuant to Article 14(5)(b) of the GDPR, if and to the extent that the provision of such information would seriously undermine the achievement of the purposes of the data processing.

Communication with us

If you have any questions about the whistleblowing system or other concerns, you can contact us via the email address provided in the Code of Conduct.

In doing so, we collect the personal data you provide in your email, in particular your name and email address. We also store the date and time of the enquiry. We process the data transmitted via email solely for the purpose of responding to your enquiry or concern.

You are free to decide for yourself what information you wish to send us via email. The legal basis for the processing of your data is your consent in accordance with Article 6(1)(a) of the GDPR.

Once we have dealt with your enquiry, the data will initially be stored in case of any follow-up queries. You may request the deletion of the data at any time; otherwise, we will delete the data once the matter has been fully resolved; statutory retention obligations remain unaffected in each case.

Your rights and contact details

We attach great importance to explaining the processing of your personal data as transparently as possible and to informing you of your rights. If you would like further information or wish to exercise your rights, you can contact us at any time so that we can address your concerns.

Data subject rights

You have extensive rights regarding the processing of your personal data. Firstly, you have a comprehensive right of access and may, where applicable, request the rectification and/or erasure or restriction of your personal data. You may also request a restriction on processing and have a right to object. With regard to the personal data you have provided to us, you also have a right to data portability.

If you wish to exercise any of your rights and/or receive further information on this matter, please contact our Data Protection Coordinator. Alternatively, you may also contact our Data Protection Officer.

Withdrawal of consent and objection

Once you have given your consent, you may freely withdraw it at any time with effect for the future. Withdrawing your consent does not affect the lawfulness of the processing carried out on the basis of your consent prior to its withdrawal. The contact person for this is the Data Protection Officer.

If the processing of your personal data is not based on consent but on another legal basis, you may object to this data processing. Your objection will lead to a review and, where appropriate, the cessation of data processing. You will be informed of the outcome of the review and, should data processing nevertheless continue, you will receive further information from us as to why the data processing is permissible.

Data Protection Officer and Contact

We have appointed an external Data Protection Officer who supports us in matters relating to data protection and whom you may also contact directly. Our Data Protection Officer and his team are happy to assist you with any questions regarding our handling of personal data or for further information on data protection matters:

Dr Christoph Rempe
c/o BRANDI Rechtsanwälte
Adenauerplatz 1, 33602 Bielefeld
Telephone: 0521 / 96535-875
Email: datenschutz@brandi.net

If you wish to contact our Data Protection Officer directly by email, you can also reach him at christoph.rempe@brandi.net.

Complaints

If you believe that our processing of your personal data is not in accordance with this privacy policy or the applicable data protection regulations, you have the right to lodge a complaint with the supervisory authority. You may also lodge a complaint with our Data Protection Officer. The Data Protection Officer will then investigate the matter and inform you of the outcome of the investigation.

Further information and changes

Changes to this privacy policy

The current version of this privacy policy is indicated by the date shown below. We reserve the right to amend this privacy policy at any time with future effect. Amendments will be made in particular in the event of changes to the whistleblowing system or to data protection regulations. The latest version of the privacy policy is always available directly from the Data Protection Officer. We recommend that you check regularly for changes to this privacy policy.

Date of this privacy policy: January 2024